

Constitution for Darwin Green Residents' Association

1. Name

- a) The Association shall be known as the "Darwin Green Residents' Association" (DGRA).
- b) The Association covers the residential areas of Darwin Green (DG1), King's Court and Franklin Gardens in North-West Cambridge, United Kingdom. These areas are broadly bounded by Huntingdon Road to the South-West, the Cambridge City boundary (including Whitehouse Lane) to the North-West, Down House Drive to the North-East, and Woodlark Road and Tavistock Road to the South-East, excluding Howe's Place and the NIAB site. The area covered by the Association is illustrated in Figure 1.



Figure 1: Map of the Association's area showing the boundary (outlined in blue) covering Darwin Green (Phase 1), King's Court, and Franklin Gardens in North-West Cambridge.

2. Aims and Objectives

The aims and objectives of the Association shall be:

- a) To represent and to promote the interests of all residents within the Association's area.
- b) To work to improve the quality of life, environment, and local conditions for residents in the area.
- c) To engage and collaborate with Cambridge City Council, Cambridgeshire County Council, and other relevant organisations on matters affecting the community.
- d) To provide a forum for residents to express views and to participate in decisions affecting the area.
- e) To promote community cohesion, inclusion, and participation across all sections of the neighbourhood.
- f) To promote environmental sustainability, to foster a community ethos that respects nature and to encourage the responsible use of natural resources within the community.
- g) The Association shall remain non-party political and non-sectarian.

3. Membership

- a) All residents over 18 years old, living within the area defined in section 1.b) are eligible and may register to become members of the Association.
- b) All members shall have voting rights on all issues raised at General Meetings that they attend.
- c) Each eligible person shall on request be supplied with an electronic copy of the constitution.
- d) The Association will take positive action to reach those people that are under-represented at meetings and events and will ensure that all members have the opportunity to be involved in the Association and its events.

4. Management Committee

- a) The Association will be run by a Committee elected at the Annual General Meeting. The Committee will be made up of at least 3 Officers, including a Chair, a Secretary, and a Treasurer. It may also include an Events Officer, a Communications Officer, and any additional Officers as the Committee sees fit.
- b) A Committee member shall be elected annually and may stand for re-election.

- c) The Committee will update Association residents at least twice a year on its work and efforts to encourage community-wide participation, for example through newsletters.
- d) There will be a minimum of 3 Committee meetings held during the course of the Association's year.
- e) At least 7 days' notice of Committee meetings will be given to all members of the Committee.
- f) The quorum for Committee meetings shall be a minimum of 4 members or 60% of Committee (whichever is lowest).
- g) Where a casual vacancy (or vacancies) arises on the Committee, it/they will be filled by election at the next General Meeting of the Association.
- h) The Committee shall deal with any issues of management of the Association which require decision during the periods between General Meetings of the Association, and report these to the next General Meeting.
- i) Committee members who miss more than three consecutive meetings without giving reasonable apologies will be asked to resign their post.
- j) A member of the Committee may be removed or suspended from their post if they bring the good name of the Association into disrepute. A full meeting of the Committee will be called to consider evidence from all sides and a majority vote will be necessary to remove or suspend.

5. Annual General Meeting

- a) The Association shall hold an Annual General Meeting (AGM) once in each calendar year, and no more than 13 months after the previous AGM.
- b) At least 14 days' notice of the AGM shall be given. The Committee shall take reasonable steps to notify all members and residents, and to invite nominations for election to the Committee.
- c) The quorum for the AGM should be a minimum of 6 members of the Association.
- d) At the AGM meeting:
 - i. The minutes of the previous AGM shall be presented and approved.
 - ii. The Committee shall present a report of the Association's activities over the past year.
 - iii. The annual accounts shall be presented.
 - iv. The existing Committee will stand down.
 - v. Officers and Committee members for the following year shall be elected.
- e) Nominations for Officers and Committee members will be accepted only if the person nominated is present at the AGM or has put in writing their willingness to stand.

- f) If no Committee can be formed, the existing Committee may remain in place for a period up to 6 months to seek to reconstitute the Association. Failing this, the Committee must initiate procedures to dissolve the Association in accordance with this constitution.

6. General Meetings

- a) The business of the Association shall be conducted at General Meetings, which shall be open to all residents over 18 living within the Association's area.
- b) The Association will hold a minimum of four General Meetings per year, one of which may be the AGM.
- c) The Association shall take reasonable steps to publicise General Meetings and events to all residents in order to encourage participation and ensure that members' views are heard. All members of the Association shall be entitled to attend General Meetings, to speak and to vote.
- d) At least 7 days' notice of General Meetings will be given to members.
- e) A quorum for General Meetings will be a minimum of 4 members of the Association.
- f) No member shall have more than one vote.
- g) Decisions shall be made by a simple majority of members present and voting. In the event of a tie, the Chair shall have a casting vote.
- h) Any member with a conflict of interest in a matter under discussion must declare such conflict and may be required to withdraw from the decision-making process, at the discretion of the Chair.
- i) Minutes of all General Meetings shall be recorded and presented for approval at the next meeting. Approved minutes shall be made available to members upon request.
- j) All members of the Association shall adhere to the Association's Code of Conduct, defined in section 8, and are expected to behave respectfully and courteously at meetings and events. The Chair may require any individual to leave a meeting if their behaviour is disruptive or inappropriate.

7. Special General Meetings

- a) A Special General Meeting may be called at any time to consider matters requiring urgent attention or to propose amendments to the constitution.
- b) A Special General Meeting may be called by the Committee, or at the written request of at least 6 members of the Association.

- c) At least 14 days' notice of any Special General Meeting will be given to members stating the purpose of the meeting. Only the business specified in the notice shall be considered.
- d) The quorum for a Special General Meeting shall be the same as for General Meetings.
- e) Amendments to the constitution considered at a Special General Meeting require a two-thirds majority.
- f) All matters for decision not related to constitution amendments shall be decided by a simple majority of those present and voting.

8. Code of Conduct

- a) It shall be a condition of membership that all members conduct themselves in a reasonable, respectful, and courteous manner at meetings and at any premises or events associated with the Association.
- b) The Association is committed to fostering an inclusive environment. Any behaviour or remarks that cause offence, intimidation, or exclusion will be challenged.
- c) Members must treat others with respect and must not discriminate on the basis of age, gender, sexuality, race, disability, beliefs, or cultural background.
- d) Members should act in the best interests of the Association and the wider community, and consider the impact of their actions on the safety and wellbeing of residents.
- e) No member may speak or act on behalf of the Association without prior agreement of the Committee.
- f) Members, including Committee members, must not use their position to promote personal interests or gain personal advantage.
- g) Members must respect confidentiality and must not disclose sensitive information obtained through Association activities without appropriate authority.
- h) Any member who breaches this Code of Conduct or acts in a manner contrary to the objectives of the Association may be excluded by a majority vote at a General Meeting. The member shall have the right of appeal to the next General Meeting.

9. Finance

- a) All money raised by or on behalf of the Association shall be used solely to further the aims and objectives of the Association and for no other purpose.

- b) The Treasurer shall maintain accurate and up-to-date financial records, including details of all income and expenditure, supported by appropriate invoices and receipts.
- c) The Association shall hold a bank or building society account in its name. The Committee shall appoint at least 2 authorised signatories, who must not be from the same household or closely related.
- d) The Treasurer shall prepare an annual statement of accounts, including an income and expenditure account and a balance sheet. The accounts shall be examined by all Committee members and presented to the AGM for approval.
- e) The Committee is responsible for ensuring that all funds, including grant funding, are used appropriately and in accordance with any terms and conditions set by funders. Reasonable expenses incurred by Committee members on behalf of the Association may be reimbursed, provided they are properly authorised and supported by receipts.

10. Events and Public Liability Insurance

- a) The Association may organise or support community events and activities for the benefit of residents, in line with its aims and objectives.
- b) The Committee shall ensure that appropriate risk assessments are undertaken for events where necessary, and that all relevant permissions or licences are obtained.
- c) Where required, the Association shall arrange appropriate public liability insurance to cover its activities and events.
- d) For events held in venues or spaces where insurance is provided by a third party (for example, community rooms or council-managed spaces), the Committee shall ensure that adequate cover is in place.
- e) The Committee shall take reasonable steps to ensure the health, safety, and wellbeing of participants at all Association events.
- f) External providers or vendors (such as food vendors or contractors) participating in Association events may be required to hold their own appropriate insurance and comply with relevant regulations.

11. Data Protection

- a) Any personal data held by the Association must be handled in compliance with the United Kingdom's data protection legislation.

12. Amendments to the Constitution

- a) Any proposals to amend the constitution must be presented to the Secretary in writing (for example via email to the Secretary, or to the contact email for the Association) at least 21 days prior to the meeting at which they are to be considered.
- b) Proposals to amend the constitution must be circulated to the Association members with the meeting notice.

13. Dissolution

- a) If the General Meeting decides, at any time, by a simple majority, that it is necessary or advisable to dissolve the Association, the Officers shall call a meeting of all members, giving at least 14 days' notice and stating the terms of the dissolution resolution to be proposed at the meeting.
- b) All outstanding bills must be settled. Any remaining grant funds will be held in trust by the Council for future residents' associations. Remaining Association funds will be donated to a charity chosen by the Committee, requiring a two-thirds majority vote.

By signing this constitution, we confirm that our Association will abide by the standards that are defined in the constitution and recognition criteria.

Chair

Date:

Signed:

Secretary

Date:

Signed:

Treasurer

Date:

Signed: